IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

SPECIAL LEAVE PETITION (CIVIL) No. OF 2010

IN THE MATTER OF:

Smt. C.S. Ashwathamma and two others Petitioners

Versus

Sri. B. Venkatesh and 14 others Respondents

AFFIDAVIT VERIFYING THE SPECIAL LEAVE PETITION

I, Ramesh, aged about 52 years, s/o. Sri. Kannaya Naidu, resident of Door No. 12/1, 2nd Cross, Kamakya Layout, BSK 3rd Stage, Bangalore- 560 085, today at New Delhi, do hereby solemnly affirm and state on oath as follows:-

1. I am the G.P.A. holder of the petitioners and I am fully conversant with the facts of the case. I was representing the petitioners in the Hon'ble High Court of Karnataka, Bangalore, also and I am authorised to represent the petitioners in the above mentioned Special Leave Petition also.

2. The contents of the Synopsis and the List of Dates (pages) Special Leave Petition paras 1 to 8 and the I.As respectively have been read by me carefully and I have understood the same, I state that the facts which have been stated therein are true to my knowledge; and no part of it is false; and nothing material has been concealed therefrom.

3. The annexures filed with the Special Leave Petition are all true copies of their respective originals.

Verified at New Delhi on August 2010.

DEPONENT

No.of corrections

SYNOPSIS AND LIST OF DATES

(1) The petitioners herein were respondents 4 (a) to 4 (c) in writ petition No.25912/2005 (KLR) that the respondents 1 to 7 herein had filed in the Hon'ble High court of Karnataka contending that they had acquired valid title to the land bearing Survye No. 726 of Harohalli Village of Kanakapura Taluk, Bangalore Rural District. The land admeasuring in all 26 acres and 35 guntas in all. There contention principally was they had purchased the land in two sale deed that they had purchased, the said land under different sale deeds which are all posterior to the sale deeds under which the petitioners herein have acquired right and title to interest in and khas position of the said lands. Mutation thereof ordered in favour of these petitioners was questioned by them interalia in the aforementioned writ petition.

(2) The respondents 1 to 7 herein had filed in the Hon'ble High court of Karnataka in W.P. No.25912/2005 (KLR) praying for quashing the three orders dated respectively 14.11.2005, 23.2.2004 and 7.7.2004 passed by the respondents 8 to 10 respectively. The said orders pertained to the entries made in the Record of Rights and the deletion of the names of the writ petitioners from the said records, as pleaded by the said writ petitioners. The very existence of the order bearing No. RRT/LR/29/88-89 statedly passed by the Assistant Commissioner itself was in total doubt, and quite strangely neither was any such order produced by the writ petitioners nor even by the Assistant Commissioner who filed two inconsistent affidavit to which reference has been made in the order of the learned Single Judge in paragraph 12 thereof. Eventhough the very existence of any such order in perpetuated implementation of which mutation entry No.23/1991 is stated to have been made by the Tahsildar (10th

respondent), in the name of Sri. H.C. Brahmachar the 12th respondent, the writ petitions stood allowed whereby the three orders questioned by the writ petitioners stood quashed with observations made as under in paragraph 14 of the said order "in this light of the matter, I have no hesitation in holding that the impugned orders are bad in law and cannot be sustained. The respondent 4 (a) to 4 (c) now representing respondent No.4, seeking to claim title would have to workout any remedy available before a competent civil court if the law so permits, accordingly this writ petition is allowed, the orders at Annexure-A to C are hereby quashed. The respondents 4 (a) to 4 (c) referred to in the order of the learned single judge is to the present petitioners who, feeling aggrieved by the said order of the learned single judge filed an appeal and intracourt appeal in W.A. No. 2264/2009 (KLR) on diverse grounds, placing reliance on the rulings of the Hon'ble High Court of Karnataka reported as (1) **Golappa v/s. Malakappa, vide ILR 1995(Karnataka) at page 118; (2) Holiyappa v/s. The Deputy Tasildhar, vide ILR 1998 (Karnataka) at page 1554 and C.N.Nagendra Singh v/s. The Special Deputy Commissioner, vide ILR (Karnataka) 2002 at page 2750 (Full Bench);** the rulings of this Hon'ble Court reported as **Hindustan Steel Limited Vs. Kalyani Banerjee reported in 1973 (1) SCC at page 273**; **Sohanlal Vs. the Union of India, reported in AIR 1957 S.C. page 527 (C/B); the State of Rajasthan Vs. Bhavani Singh and Mohan Pandey Vs. Usha Rani Rajgaria, reported respectively in AIR 1992 S.C. 1018; AIR 1993 S.C. at page 1225; Radheshyam and another Vs. Chhabinath and others, reported in 2009 (5) SCC at page 616 and P.R. Muralidharan Vs. Swamy Dharmananda Thirthapadar in 2006 (4) SCC at page 501,** for substantiating their primary contension as to the scope and ambit of judicial review of such orders of the revenue authorities as had been

questioned by the writ petitioners in the aforementioned writ petition that they had filed. It was seriously contended in the writ appeal similarly as in the writ petition that in the wake of the clarification furnished to the Hon'ble High Court, by the Assistant Commissioner of the Tahsildar (respondents 9 and 10 herein) that no order or proceedings in R.R.T. No. CR-29/88-89 was even existing on the alleged basis of which the mutation entry bearing No.23/1994 had been effected in favour of H.C. Brahmachar respondent No.12, the petition had proceeded on a fundamentally erroneous assumption and presumption of the existence of a non-existing order and that the writ petitioners having not discharged the burden of establishing that there did exists any proceedings or order as the one claimed by them and Sri. Brahmachar – the 12th respondent and through whom the writ petitions claimed right and title to the lands in question, the writ appeal richly merited to be allowed particularly because even the learned single judge had similarly proceeded on assumptions and presumptions without any document and material of probative value.

(3) It was also further contended by the petitioners that every error of fact or law in any order or proceedings cannot be a ground fro exercising jurisdiction under Article 226 and 227 of the Constitution of India it was the further contention of the petitioner herein that there was neither any violation of principles of natural justice nor any perversity in the "orders" impugned in the writ petition and therefore the learned Single Judge was not right in professing to quash the same and also observing that the petitioners herein who had succeeded althrough before respondents 9 to 11 have to establish their title to the land in question before a competent civil court because such a finding would virtually amount shifting the burden of establishing that the writ petitioners and other vendor Sri. Brahmachar did not have

any right or title to interest in or possession of the land in question, burden having been wrongly shifted on the petitioners for proving a negative aspect. Unfortunately the Division Bench of the Hon'ble High Court which heard the writ petitioners in W.A. No.2264/2009 (KLR) rejected the said appeal summarily by its order dated 25.8.2009 which contains severe grosstic errors and omissions. Hence, corrections as have been made in the said order were effected on 4.12.2009. However, the erroneous judgment rendered in the appeal which affirms the order of the learned single judge has subjected the petitioners herein to a grave injustice and hence aggrieved thereby this Special Leave Petition is presented.

(4) The impugned judgment of the Division Bench though is dated 25.8.2009 was corrected on 4.12.2009 and hence for the purpose of limitation for filing the Special Leave Petition, it is most respectfully submitted that the later date requires to be reckoned as the date of the judgment.

LIST OF DATES:

6.11.1950	Sale Deed executed by Sri. Shankaracharappa in favour of Sri. Chandrachar in respect of the lands in Sy.No.726.
15.10.1952	Sale Deed executed by Sri. Shankaracharappa in favour of Sri.Chandrachar in respect of lands in Sy.No. 726.
14.7.1967	Sale Deed executed by Sri. Chandrachar and his legal heirs in respect of lands in favour of Muthaiah.

25.1.1968	Sale Deed executed by Sri. Chandrachar and his legal heirs in respect of lands in favour of Muthaiah.
21.3.1971	Sale Deed executed by Sri. Chandrachar and his legal heirs in respect of lands measuring 2 acres in favour of Muthaiah.
24.6.1978	Sale Deed executed by Sri. Chandrachar and his legal heirs in respect of lands in favour of Muthaiah.
23.9.1995	Sale Deed executed by Sri. Chandrachar and his legal heirs in respect of lands in favour of Muthaiah.
7.12.1998	Sale Deed executed by Sri. Chandrachar and his legal heirs in respect of lands in favour of Muthaiah.
10.5.2000	Sale Deed executed by Narayanappa and his family members in favour of Sri.B. Jayarama, to an extent of 2 acres.
26.8.2000	Sale Deed executed by Sri. Cheluvaiah @ Kariyappa in favour of Sri. B. Jayaraman to an extent of 3.00 acres.
26.8.2000	Sale Deed dated 26.8.2000 executed by Sri. Cheluvaiah @ Kariyappa in favour of Sr.B. Jayaraman, to an extent of 2 acres 05 guntas.

2.11.2000	Sale Deed executed by legal heirs of Sri. Chandrachar in favour of Sri.B. Venkatesh, to an extent of 15 acres 20 guntas
155/00-01	Mutation issued by the Tahsildar, Kanakapura, thereby directing the 4th respondent to approach the Civil Court for redressal of his grievances, since the katha and all other revenue records transferred in the name of the petitioners.
27.9.2002	Sale Deed executed by Sri. D. Jayaprakash and his family members in favour of Sri.B. Venkatesh, to an extent of 1.00 acre.
28.9.2002	Sale Deed executed by Sri.Muthuraju in favour of Sri.B. Venkatesh, to an extent of 2.00 acres.
1471/02-03	Mahazar Report submitted by the Revenue Inspector, Taluk Surveyor and Village Accountant to the 3rd respondent, substantiating the fact that the 4th respondent is not at all in the possession of the lands in question.
23.2.2004	Order passed by the 2nd respondent-Assistant Commissioner directing the Tahsildar to effect Katha in favour of the 4th respondent.

7.7.2004	Order passed by the 3rd respondent- Tahsildar on the basis of the directions issued by the 2nd respondent.
14.11.2005	Order passed by the 1st respondent thereby dismissing the Revision Petition filed by the 1st petitioner and others.
3.4.2009	The writ petition filed by the respondents 1 to 7 has been allowed and have to work out any remedy available before the competent civil court, if the law so permits.
6.7.2010	Aggrieved by the said order and seeking condonation of delay of 64 days in questioning the said order the petitioners herein filed a writ appeal in W.A. No.2264/2009 (KLR).
25.8.2009	The delay in filing the appeal was condoned, and the appeal having been heard preliminarily was disposed of, affirming the order of the learned single judge.
4.12.2009	In view of the several typographical errors found in the draft of the judgment dictated in the open court, the same were corrected and incorporated in the judgment which is herein after referred to as the impugned judgment.
8.1.2010	A certified copy of the impugned judgment, as corrected on 4.12.2009 was applied for by the petitioners.

11.1.2010	The certified copy applied for us ready for being delivered.
12.1.2010	The same has been delivered.
16.8.2010	Aggrieved by the judgment dated 25.8.2009 as corrected on 4.12.2009 this Special Leave Petition is filed with an application separately filed praying for delay in challenging the said judgment.

IN THE SUPREME COURT OF INDIA AT NEW DELHI

(Order XVI Rule 4(1)(a) of the Supreme Court Rules)

CIVIL APPRELLATE JURISDICTION

SPECIAL LEAVE PETITION

(Under Article 136 of the Constitution of India)

WITH PRAYER FOR INTERIM RELIEF

Special Leave Petition (Civil) No._____/2010

POSITIONS OF PARTIES

	In the High Court	**In this Court**
In the matter of :-		
1. Smt. C.S.Ashwathamma, w/o. late C.Shankar. 2. Sri C.S.Ramanatha, s/o. late C.Shankar. 3. Sri C.S.Vishvamurthy, s/o. late C. Shankar (All the appellants are majors, residing at “Laxmi Nivas”, Anganavadi, Thyamagundlu, Nelamangala Taluk, Represented by Sri. Ramesh, aged about 52 years, s/o. Sri. Kannaya Naidu, R/o. D.No. 12/1, 2nd Cross, Kamakya Layout, BSK 3rd Stage, Bangalore – 560 085	Appellants	Petitioners

And:-

1. Sri B. Venkatesh, aged 48 years,
s/o. late K. Babu.

2. Smt. Padma, aged 40 years,
w/o. late B.Jayaraman.

3. Master Sridhar, aged 22 years,
s/o. late B.Jayaraman.

4. Kumari Nadai, aged 20 years,
d/o. late B.Jayaraman.

5. Kumari Kavitha, aged 17 years,
d/o. late B.Jayaraman.

6. Kumari Ambika, aged 15 years,
d/o. late B.Jayaraman.

7. Master Hariharan,
aged 11 years,
s/o. late Jayaraman.

(Respondents 5 to 7 being still
minors are represented by their
mother and natural-guardian
Smt. Padma – the 2nd respondent
and residing at Harohalli Village,
Harohalli Hobli,
Kanakapura Taluk.

8. The Deputy Commissioner,
Bangalore Rural District, V.V. Tower,
Bangalore – 560 001.

9. The Assistant Commissioner,
Ramanagaram,
Ramanagaram Distrct.

10. The Tahsildar,
Kanakapura Taluk,
Ramanagaram,
Ramanagaram District.

11. Sri Cheluvaiah @ Kariyappa,
major,
s/o. late Cheeklegowda.

12. Sri H.C.Brahmachar,
major,
s/o. late Chandrachari.

13. Sri D.Jayaprakash,
major,
s/o. late Doddaiahachar.

14. Sri Muthuraj,
major,
s/o. Muthaiah.

15. Sri Narayana,
major,
s/o. Ramaiah.

(Respondents 11 to 15 are
residing at Harohalli Village,
Harohalli Hobli,
Kanakapura Taluk). Respondent Respondent

To,

THE HON'BLE CHIEF JUSTICE OF INDIA AND HIS OTHER, COMPANION JUDGES OF THE SUPREME COURT OF INDIA, NEW DELHI

THE HUMBLE PETITION OF THE PETITIONER ABOVE NAMED

The Special Leave Petition of the Petitioner:

MOST RESPECTFULLY SHOWETH:

1. That the petitioners above named respectfully submit this Special Leave Petition under Article 136 of the Constitution of India for grant of Special Leave to Appeal against the judgment dated 25.8.2009 as correct by a Division Bench of the Hon'ble High Court of Karnataka on 4.12.2009, and the said judgment rendered by the said Bench in Writ Appeal No. 2264/2009 (KLR) on its file, being aggrieved by the said judgment.

2. **QUESTIONS OF LAW**:

That this petition raises the following substantial and important questions of law, for grant of Special Leave to Appeal.

a. Was the learned Single Judge justified in quashing a non-existing order which was attributed to the 9th respondent – Assistant Commissioner, Ramanagaram Sub-Division to the erstwhile Bangalore Rural District now in Ramanagaram District, particularly when the affidavits filed by the Assistant Commissioner were irreconcilable and had categorically asserted about the non-existence of the alleged order bearing No. RRT/CR/29/88-89 dated 20.9.1988 which was, even after the verification of the records of respondents 8 to 10 was not found anywhere and in pursuance of the said non-existing order mutation entries bearing No.23 of 1991 having been made.

b. In view of the incontrovertible fact that no such order dated 20.9.1988 was ever existing was the Deputy Commissioner in error in cancelling and setting at naught the Mutation Register entry No.23/1991 which had been passed on such a non-existing order.

c. What is the scope of the interference under Articles 226 and 227 of the Constitution of India with the orders of Revenue Authorities in respect of entries in the Record of Rights etc. Regard being had to the well-settled position in law as ruled by the Hon'ble Court in the cases of **P.R. Muralidharan Vs. Swamy Dharmananda Thirthapadar in 2006 (4) SCC at page 501,** which rulings being binding precedent under Article 141 of the Constitution of India.

d. Is not the impugned judgment grossly infected by not even being referred to the said judgment.

e. Has not the impugned judgment been infected by a legal error in not following the aforementioned ruling of this Hon'ble Court dealing with the scope and ambit of power of judicial review under Articles 226 and 227 of the Constitution of India.

f. Were the orders impugned in the writ petition liable to be quashed keeping in view the scope and ambit of power under Sections 129 (5) and 136 (2) r/w 136 (3) of the Karnataka Land Revenue Act, 1964 and the rules made thereunder.

g. Is the observations made in the impugned judgment passed in affirmation of the learned single judge that the petitioners herein have to approach a civil court for establishing their title to the land in question justified when such a title was baselessly ascertained by the respondents 1 to 7 who had approached the Hon'ble High court with a writ petition from which the present Special Leave Petition has arisen.

h. Are findings contained in the impugned judgment tenable in view of the incontrovertible fact that the petitioners have purchased the land in question in the year 1949 under registered sale deeds while the respondent 1 to 7 claim to have purchased the same in the year 1950 and 52, when the doctrine of Caveat Emptor would forbid such an alleged purchase statedly made by them.

j) Is not the findings rencorded in paragraph 11 of the impugned judgment untenable for the reason that it has rejected the contention of the petitioners herein that the affidavit about the non-existence of the alleged order dated 20.9.1988 of the Assistant Commissioner, could not be treated as the original of the order of restoration of the khatha of the land in favour of the alleged vendors of the respondents 1 to 7 and that such affidavit did not even constitute a secondary evidence.

k) Can the impugned judgment be construed a speaking one when it does not dwell on, deal with and record findings on the various contentions urged in the writ appeals, particularly when none of the binding rulings cited in support of the appeal has been referred to therein.

3. DECLARATION IN TERMS OF RULE 4(2) :-

The petitioners state that no other petition seeking leave to appeal has been filed by either of them against the judgment questioned in this Special Leave Petition, previously.

4. **DECLARATION IN TERMS OF RULE 6** :-

The Annexures P1 to_____ produced with the Special Leave Petition are all true copies of the documents which formed part of the records of the case in the High Court from the judgment of which court the present Special Leave Petition has arisen.

5. **GROUNDS** :-

Leave to appeal is against the judgment and decree dated 3.7.2009 also the later order dated 23.7.2010 is sought by the petitioner, on the following grounds.

I. REPEAT THE QUESTION SOF LAW AS GROUNDS.

II.

6. **GROUNDS FOR INTERIM RELIEF** :-

7. **MAIN PRAYER** :-

It is, therefore, most respectfully prayed that this Hon'ble Court graciously be pleased to :-

a) GRANT Special Leave to appeal from the impugned judgment dated 25.8.2009 as corrected on 4.12.2009 passed by a Division Bench of the Hon'ble High Court of Karnataka, Bangalore in W.A. No. 2264/2009 (KLA) on its file;

and

b) PASS such other or further orders as this Hon'ble Court may deem just and proper in the facts and circumstances of the case, including the award of the costs of the proceedings althrough, and in the interest of justice and equity.

8. PRAYER FOR INTERIM RELIEF :-

It is, therefore, most respectfully prayed that your Lordships may graciously be pleased to:

(a) ***grant*** an exparte order of stay of the impugned judgement dated 25.8.2009 and the order dated 3.4.2009 rendered in W.P. No.25918/2005 (KLR) which had been impugned in the said writ appeal;

and

(b) ***pass*** such other order or orders which this Hon'ble Court may deem fit and proper in the interest of justice.

New Delhi
Date:

Advocate for the Petitioner

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

CIVIL APPEAL No. OF 2010

IN THE MATTER OF:

Smt. C.S. Ashwathamma and two others Petitioners

Versus

Sri. B. Venkatesh and 14 others Respondents

APPLICATION UNDER SECTION 5 OF THE INDIAN LIMITATION ACT, 1963 FOR CONDONATION OF DELAY

The petitioner above named respectfully submits as follows:

1. In the above Special Leave petition the judgment dated 25.8.2009 as corrected on 4.12.2009 passed by a Division Bench of the Hon'ble High Court of Karnataka, Bangalore, a certified copy of the impugned judgment was applied by the petitioners on 8.1.2010 and the same was delivered to them on 12.1.2010. On account of their totally impecunious situation as also the in dispossession of Sri. Ramesh the G.P.A. holder who had been representing the petitioners althrough in the writ proceedings as also before the Revenue Authorities concerned, for over 3 months the intended Special Leave Petition could not be presented before this Hon'ble Court closed for the last summer vacation. Before which the same ought to have been filed before which date.

2. Further, the learned senior counsel who represented the petitioners herein in the writ appeal was away from the country in the United States of America between 27.4.2010 and 3.7.2010 whereafter, his guidance was sought for filing the present Special Leave Petition and has been presented, notwithstanding the petitioners being financially unable to bear the brunt of the cases of the proceedings.

3. In the process an unintentional delay has crept-in the same is not intentional.

4. The petitioners have a good case on its merits and in the event of the delay in filing the Special Leave Petition being not condoned they will suffer an irreparable injury and hardship. As it is just and necessary that the cause pleaded by the petitioners would require to be decided on its merits the delay should not defeat the cause, it is most respectfully submitted that it would be just and expedient that this Hon'ble Court be pleased to graciously condone the delay in filing the above Special Leave Petition, in the interest of justice and equity.

New Delhi
Date:

Advocate for the Petitioner

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

CIVIL APPEAL No. OF 2010

IN THE MATTER OF:

Smt. C.S. Ashwathamma and two others Petitioners

Versus

Sri. B. Venkatesh and 14 others Respondents

APPLICATION UNDER SECTION 151 OF THE CODE OF CIVIL PROCEDURE, 1908

The petitioners above named respectfully submit as follows:

1. In order to avoid repetition of the contents the contents of the memorandum of special leave petition and to keep up brevity the petitioners respectfully pray for reading and treating the contents thereof as a part and parcel of this application. To the extent relevant in this context, the same are hereby reiterated.

2. The three orders marked with the petition as Annexure-…..to …. having been set aside by the learned single judge, the private respondents are precipitating the matter and have approached the respondents 8 to 10 herein for mutating their names in respect of the land in question. If any such action in pursuance of the order appealed from is taken during the pendency of the appeal the same will result in a multiplicity of

proceedings besides resulting in a severe injury of the appellants who have a good case on merits.

3. Wherefore, it is respectfully prayed that this Hon'ble Court be pleased to grant an interim order of stay of the operation and all further proceedings under and in pursuance of the final order dated 3.4.2009 passed in W.P. No. 25912/2005 (KLR) , pending disposal of the above writ appeal, in the interest of justice and equity.

New Delhi Advocate for the Petitioners
Date: